

House of Representatives Member Election Act, 2017

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Chapter-1

Preliminary

1. Short title and commencement: (1) This Act may be called the "House of Representatives Member Election Act, 2074".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Court" means the Constitutional Bench of the Supreme Court pursuant to Sub-article (1) of Article 137 of the Constitution.

(b) "Commission" means the Election Commission pursuant to Article 245 of the Constitution.

(c) "Candidate" means a person nominated as a candidate for membership of the House of Representatives pursuant to Section 18, and the said term also denotes a person whose name is included in the closed list of candidates pursuant to Section 28.

(d) "Closed list of candidates" means the closed list submitted by a political party to the Commission pursuant to Section 28 for the purpose of candidacy in the election held under the proportional electoral system.

(e) "Prescribed" or "as prescribed" means as prescribed in the rules made under this Act or in the order issued by the Commission pursuant to Section 76.

(f) "Party" means a political party registered with the Commission for the purpose of election, and the said term also denotes a group of parties jointly participating in an election with a single election symbol.

(g) "Election" means an election of a member of the House of Representatives held under this Act, and the said term also denotes a by-election held when the seat of a member elected from the election under the First-Past-The-Post electoral system falls vacant.

(h) "Election Officer" means the Chief Election Officer and Election Officer appointed by the Commission pursuant to Section 8, and the said term also denotes the Assistant Election Officer.

(i) "Constituency" means the electoral constituency determined by the Election Constituency Delimitation Commission pursuant to the federal law for the election held under the First-Past-The-Post electoral system.

(j) "Election representative" means the election representative appointed pursuant to Section 63.

(k) "First-Past-The-Post electoral system" means the electoral system pursuant to Section 4.

(l) "Backward region" means the districts of Achham, Kalikot, Jajarkot, Jumla, Dolpa, Bajhang, Bajura, Mugu, and Humla.

(m) "House of Representatives" means the House of Representatives constituted pursuant to Article 84 of the

Constitution.

(n) "Voter" means a person whose name is included in the final electoral roll pursuant to the federal law.

(o) "Ballot paper" means the ballot paper arranged for voting in the election, and the said term also denotes the ballot paper used in an electronic device or the digital ballot paper installed in such device where voting through electronic devices is arranged.

(p) "Ballot box" means the ballot box arranged by the Commission for keeping the marked ballot paper, and the said term also denotes the electronic device that records the vote cast through such electronic device where voting is done through electronic devices.

(q) "Presiding Officer" means the Presiding Officer appointed pursuant to Section 11, and the said term also denotes the Assistant Presiding Officer.

(r) "Member" means a member of the House of Representatives.

(s) "Proportional electoral system" means the electoral system pursuant to Section 5.

(t) "Constitution" means the Constitution of Nepal.

Chapter-2

Electoral System

3. Electoral System: For the total number of two hundred and seventy-five members of the House of Representatives, the following electoral system shall be adopted:-

(a) The First-Past-The-Post electoral system for a total number of one hundred and sixty-five members,

(b) The proportional electoral system for a total number of one hundred and ten members. 4. First-Past-The-Post electoral system: Under the First-Past-The-Post electoral system, the candidate who obtains the highest number of votes on the basis of one seat per constituency shall be elected as a member of the House of Representatives. 5. Proportional electoral system: Under the proportional electoral system, considering the whole country as one constituency, votes shall be cast for parties, and candidates representing such party from the closed list shall be elected as members of the House of Representatives in proportion to the total number of votes obtained by each party. Chapter-3

Election Notice

6. Fixing of election date: (1) The Government of Nepal shall fix the date of election. Provided that, before fixing the date of election, the Government of Nepal shall consult the Commission.

(2) In case the House of Representatives is dissolved pursuant to Sub-article (7) of Article 76 of the Constitution, the President, on the recommendation of the Prime Minister, shall fix the date of election so that the election is completed within six months of the dissolution of the House of Representatives.

(3) If it is not possible to complete the election in a single phase on the date under Sub-section (1) or (2), separate dates may also be fixed to complete the election in two or more phases, starting the election from that date.

(4) The notice fixing the date of election pursuant to this Section shall be published in the Nepal Gazette. 7.

Notice of election program: (1) After the notice fixing the date of election pursuant to Section 6 is published,

the Commission shall publish a notice of the election program. (2) The election program under Sub-section (1) must specify the date, time, and place for filing nomination papers of candidates, publishing the list of candidates whose nomination papers have been filed, filing complaints against candidates, scrutinizing nomination papers, publishing the list of nominated candidates, withdrawal of candidacy by candidates, publishing the final list of candidates, providing election symbols to candidates, and voting. (3) The election program under Sub-section (1) must also include the program for submitting the closed list of candidates to the Commission for the election under the proportional electoral system, claiming and objecting to it, and publishing the final closed list of candidates. (4) The election program under this Section shall be published in the Nepal Gazette. (5) The relevant Election Officer shall publish the notice according to the election program published by the Commission under Sub-section (1) at the office of the Election Officer.

Chapter-4 Chief Election Officer, Election Officer, Presiding Officer, and Other Staff

8. Appointment of Election Officer: (1) The Commission shall appoint one Chief Election Officer for each district and one Election Officer for each constituency to perform or cause to perform the tasks required to be done in an election in accordance with the Constitution, this Act, and federal law. (2) While appointing the Election Officer under Sub-section (1), the Commission shall, on the recommendation of the Judicial Council, appoint the District Judge as the Chief Election Officer, and on the recommendation of the Judicial Service Commission, appoint at least a gazetted second class officer of the Nepal Judicial Service as the Election Officer. (3) The Election Officer may appoint Assistant Election Officers and other staff in such number as prescribed by the Commission.

9. Duties, functions, and powers of Chief Election Officer: (1) It shall be the duty of the Chief Election Officer to coordinate and supervise the election-related work of the constituencies within the district assigned to him/her and to give necessary directions, subject to the directions of the Commission. (2) The Chief Election Officer shall also exercise and perform the duties, functions, and powers of the Election Officer in the constituency assigned to him/her.

10.

Duties, functions, and powers of Election Officer: (1) It shall be the duty of the Election Officer to perform or cause to perform all work and proceedings relating to conducting elections in the constituency assigned to him/her in a clean, impartial, and free manner in accordance with this Act, subject to the directions of the Commission and the Chief Election Officer. (2) Other duties, functions, and powers of the Election Officer shall be as prescribed. (3) The Election Officer may delegate his/her authority to staff assigned for election work as required. Provided that the authority to scrutinize nomination papers, approve or reject nomination papers, and declare the final result of the counting of votes shall not be delegated. (4) The Election Officer may assign or engage employees of the Government of Nepal, Provincial Government, and Local Level, employees of entities owned or controlled by the Government of Nepal or Provincial Government or operated with grants from the Government of Nepal or Provincial Government, or teachers or employees of universities or community schools, for any election-related work. Provided that while assigning employees or teachers in this manner, in the case of an employee, they shall be assigned to a ward other than the relevant ward of the place where his/her home address is situated, and in the case of a teacher, they shall be assigned to a ward other than the relevant ward of the place where he/she works and where his/her home address is situated.

11. Appointment of Presiding Officer: (1) The Election Officer may appoint employees of the Government of Nepal, Provincial Government, and Local Level, employees of entities owned or controlled by the Government of Nepal or Provincial Government or operated with grants from the Government of Nepal or Provincial Government, or teachers or employees of universities or community schools, as Presiding Officers or Assistant Presiding Officers. Provided that while appointing Presiding Officers or Assistant Presiding Officers in this manner, in the case of an employee, they shall be appointed to a ward other than the relevant ward of the place where his/her home address is situated, and in the case of a teacher, they shall be

appointed to a ward other than the relevant ward of the place where he/she works and where his/her home address is situated. (2) The Presiding Officer and Assistant Presiding Officer appointed under Sub-section (1) must complete all work relating to conducting voting in a clean, impartial, and free manner as specified by this Act and the rules made or orders issued under this Act. (3) Other duties, functions, and powers of the Presiding Officer and Assistant Presiding Officer shall be as prescribed. Chapter-5 Candidates and Nomination Papers 12.

Qualification of candidate: A person must fulfill the following qualifications to be a candidate in an election:- (a) A citizen of Nepal, (b) Whose name is included in the electoral roll, (c) Who has completed the age of twenty-five years, (d) Who is not disqualified by any federal law, and (e) Who does not hold a position of profit. Explanation: For the purpose of clause (e), "position of profit" means, excluding a political position filled by election or nomination, any other position that receives remuneration or financial benefits from any government fund. 13. Disqualification of candidate: Notwithstanding anything elsewhere contained in this Act, the following persons shall be deemed disqualified to be a candidate in an election:- (a) Who does not possess the qualification under Section 12, (b) Who is currently employed on a remunerative basis in the Government of Nepal, Provincial Government, or Local Level, or in entities owned or controlled by the Government of Nepal, Provincial Government, or Local Level, or in entities receiving grants from the Government of Nepal, Provincial Government, or Local Level, (c) Who has been sentenced under the prevailing law relating to elections and two years have not elapsed from the date of serving such sentence, (d) Who has been sentenced for an offense relating to corruption, rape, human trafficking and transportation, sale, distribution, export or import of narcotic drugs, money laundering, misuse of passport, kidnapping, or other criminal offenses involving moral turpitude, or has been sentenced to life imprisonment or imprisonment for twenty years or more for any offense, and such judgment has become final, (e) Who has been sentenced to imprisonment for an offense relating to organized crime or sentenced to imprisonment for less than twenty years for an offense relating to culpable homicide, and six years have not elapsed from the date of serving such sentence, (f) Who has been sentenced to imprisonment for an offense relating to caste-based discrimination and untouchability, witchcraft, or polygamy, and three years have not elapsed from the date of serving such sentence, (g) Who has been sentenced to imprisonment for five years or more for an offense other than those mentioned in clauses (d) and (e), and six years have not elapsed from the date of serving such sentence, (h) Who is on the blacklist pursuant to prevailing law, for the duration of that period, (i) Who is in custody, for the duration of custody, (j) Who is of unsound mind. 14. Not to be a candidate twice: (1) In an election held under the First-Past-The-Post electoral system, a person may file candidacy for only one constituency at a time.

If any person becomes a candidate in more than one constituency in that manner, the Commission shall cancel his/her candidacy in all constituencies. (2) A person whose name is included in the closed list for the proportional electoral system shall not be a candidate for the First-Past-The-Post electoral system, and the name of a person who has become a candidate for the First-Past-The-Post electoral system shall not be included in the closed list for the proportional electoral system. (3) If the name of the same person is included in the closed list of more than one party for the proportional electoral system, the Commission shall remove such person's name from the closed lists of all such parties. (4) In case the date of election for the House of Representatives and the Provincial Assembly is fixed to be held on the same date, if any person becomes a candidate in the election for both the House of Representatives and the Provincial Assembly, the Commission shall cancel his/her candidacy for both elections. 15. Decision on disqualification of candidate: (1) If, after the nomination for candidacy for a member has been filed but before the election result is declared, anyone believes that a candidate is or has become disqualified, a complaint may be filed with the

Commission through the relevant Election Officer with clear evidence. (2) If a complaint is received under Sub-section (1), the Election Officer may give such candidate a period of seven days to submit an explanation regarding the matter. (3) After receiving the explanation under Sub-section (2), or if no explanation is received within the period, the Election Officer shall, mentioning the same, forward the complaint filed under Sub-section (1) and related documents to the Commission as soon as possible. (4) After receiving the documents along with the complaint under Sub-section (3), the Commission may, if it wishes, inquire with the relevant candidate or request further evidence on the matter. (5) The Commission shall, upon examining the documents along with the complaint received from the Election Officer under Sub-section (3), decide on the disqualification of the candidate within seven days from the date of receipt of the complaint. (6) The procedure to be adopted while deciding on the disqualification of a candidate under Sub-section (5) shall be as determined by the Commission. (7) Notwithstanding anything elsewhere contained in this Section, the mere fact that the Commission has not yet decided on the disqualification of a candidate under this Section shall not affect the work and proceedings of such election. 16.

Vacating of office: (1) If a person elected to the office of a member is adjudged by a Court to be disqualified under Section 13, he/she shall be vacated from such office. (2) The Commission shall inform the person concerned about the vacation of office under Sub-section (1). (3) Provisions relating to filing a complaint in the Court regarding the disqualification of a person elected to the office of a member shall be as prescribed. (4) A notice of vacation of the office of member under Sub-section (1) shall be published in the Nepal Gazette. 17. Calculation of age of candidate: In calculating the age of a candidate to be a candidate in an election, in the case of the First-Past-The-Post electoral system, the candidate must have completed the age of twenty-five years by the date of filing the nomination paper, and in the case of the proportional electoral system, the candidate must have completed the age of twenty-five years by the date of submitting the closed list of candidates. 18. Nomination of candidate: (1) A person not disqualified under Section 13 may be a candidate in an election or may be nominated as a candidate as prescribed. (2) While nominating a candidate under Sub-section (1), there must be one proposer and one seconder. Such proposer and seconder must be persons whose names are registered in the electoral roll of the same constituency. (3) In case a person is proposed as a candidate under Sub-section (2), such candidate must give his/her consent in writing and affix his/her signature on the nomination paper. (4) In relation to a candidate set up by a political party, an official letter issued by the authority under Sub-section (1) of Section 19 from such party must be submitted along with the nomination paper. (5) The authority under Sub-section (4) shall also send a copy of such official letter given to the candidate to the Election Officer. (6) If the nomination paper is filed without complying with the procedure under Sub-section (4), such candidate shall not be recognized as a candidate of that party. (7) A person may be nominated for election by means of a maximum of two nomination papers. 19.

Provision relating to authority to provide official letter of nomination: (1) To provide the official letter of nomination of candidates from its side, a political party shall designate an office bearer of its central executive committee or a committee equivalent to it. (2) The name, surname, position, and specimen signature of the office bearer under Sub-section (1) must be certified by an office bearer of the central executive committee or a committee equivalent to it designated by the central executive committee or such equivalent committee, and provided to the Commission within the period prescribed by the Commission prior to the date of filing nomination papers for candidates. (3) The Commission shall send the details including the specimen signature under Sub-section (2) to the relevant Election Officer before the date fixed for filing nomination papers. 20. Registration of nomination paper: (1) The nomination paper of a candidate must be submitted to the relevant Election Officer by the candidate himself/herself or by his/her representative or proposer or seconder. (2) The Election Officer shall examine whether the nomination paper submitted under Sub-section

(1) is in order in accordance with this Act, and if it is in order, register it and give a receipt thereof to the person bringing it for registration. (3) If a person brings a nomination paper for registration that has no proposer or seconder, or the proposer or seconder is the same person, or there is no receipt of deposit of security amount under this Act, or there is no signature of the proposer, seconder, or the person to be a candidate, or other procedures are not fulfilled, the Election Officer shall have the deficiencies corrected and register such nomination paper. If any person wishes to get the nomination paper registered without correcting the deficiencies in this manner, the Election Officer shall mention the same on the nomination paper and give notice thereof to the person bringing the nomination paper for registration. (4) Other documents to be submitted along with the nomination paper shall be as prescribed. (5) After the time for filing nomination papers has expired, the Election Officer shall publish, at the date, time, and place specified in the notice of the election program, a list of candidates whose nomination papers have been registered. 21. May claim and object: A candidate or his/her representative who wishes to claim or object to the eligibility of any candidate whose nomination paper has been registered under Section 20 may file a complaint with the Election Officer at the date, time, and place specified in the notice of the election program. 22.

Scrutiny of nomination paper: (1) While scrutinizing the nomination paper registered under Section 20, the candidate or his/her representative, proposer, or seconder must be present at the date, time, and place specified in the notice of the election program. (2) The Election Officer shall scrutinize the nomination papers of all candidates in the presence of the persons mentioned in Sub-section (1). Provided that this Sub-section shall not be deemed to prevent the scrutiny of nomination papers and passing of a decision on that matter according to law, even if any candidate, his/her proposer, seconder, or representative who was required to be present is absent. (3) The Election Officer may suspend the proceedings relating to the scrutiny of nomination papers to be conducted under this Section in the following circumstances, and shall inform the Commission of the suspension of the proceedings relating to the scrutiny of nomination papers:- (a) If a riot or other abnormal situation arises at the place during the time of scrutiny of nomination papers, or (b) If a situation beyond control arises due to a natural disaster. (4) If the proceedings relating to the scrutiny of nomination papers are suspended under Sub-section (3), the Election Officer shall, on the basis of any directions given by the Commission, fix a time and place and conduct the scrutiny of nomination papers as soon as possible. (5) Other provisions relating to the scrutiny of nomination papers shall be as prescribed. 23. Grounds for rejection of nomination paper: (1) The nomination paper shall be rejected in the following circumstances:- (a) If the candidate does not possess the qualification under the Constitution and this Act, (b) If there is no consent of the person to be a candidate, or there is no signature of him/her or his/her proposer and seconder, or the signature is forged, (c) If the nomination paper is not registered within the time specified under Sub-section (2) of Section 7, (d) If the nomination paper is not filed as per Sections 18, 19, and 20, (e) If the security amount is not deposited under Section 70, (f) If other procedures under this Act are not fulfilled. (2) If a candidate whose name is included in the closed list for the proportional electoral system becomes a candidate for the First-Past-The-Post electoral system, contrary to Sub-section (2) of Section 14, his/her nomination paper for the First-Past-The-Post electoral system shall be rejected. 24. List of candidates: After completing the scrutiny of nomination papers, the Election Officer shall prepare a list of candidates according to the nomination papers that are found to be in order in accordance with law, and publish a copy thereof at his/her office. 25.

Withdrawal of candidacy: (1) If a candidate for the First-Past-The-Post electoral system wishes to withdraw his/her name from the list of candidates, he/she may withdraw his/her name by giving written notice to the Election Officer within the time specified under Sub-section (2) of Section 7. (2) The notice of withdrawal of name under Sub-section (1) must be filed by the candidate himself/herself or his/her representative. (3) Once

the notice of withdrawal of name under Sub-section (1) has been filed with the Election Officer, such notice shall not be canceled or withdrawn. (4) If the Election Officer is satisfied with the notice filed under Sub-section (1) or (2), he/she shall remove the name of such candidate from the list of candidates. The Election Officer shall immediately publish the notice of such removal of name at his/her office. (5) If the office bearer designated under Sub-section (1) of Section 19 to provide the official letter of nomination of candidates from a party sends a written communication to the Election Officer within the time specified under Sub-section (2) of Section 7 to withdraw the name of any candidate who has filed candidacy from such party, such candidate shall not be retained as a candidate. 26. Final list of candidates: (1) After the time specified for withdrawal of name under Sub-section (2) of Section 7 has expired, the Election Officer shall prepare a list of remaining candidates and immediately publish a copy thereof at his/her office and send a copy thereof to the Commission. (2) The names of candidates in the list under Sub-section (1) shall be written according to the Nepali alphabetical order, and if a candidate is nominated from a party, the name of such party shall also be mentioned in the address of the candidate. 27. Elected unopposed: If only one candidate remains in any constituency under the First-Past-The-Post electoral system, the Election Officer shall declare such candidate elected unopposed to that seat. 28.

Preparation of closed list of candidates: (1) A party wishing to participate in the election held under the proportional electoral system must prepare a closed list of candidates representing its party. (2) While preparing the closed list of candidates under Sub-section (1), the party must prepare the closed list so as to field candidates for at least ten percent of the total number of members to be elected under the proportional electoral system. (3) While preparing the closed list of candidates, the party must include the names of at least fifty percent of the total candidates as women. (4) While preparing the closed list of candidates, the party shall not include the names of more candidates than the total number of members determined for the proportional electoral system. (5) While preparing the closed list of candidates under this Section, the party must prepare it in accordance with the inclusive principle, taking into account geographical and regional balance, ensuring representation of Dalit, Indigenous Peoples (Janajati), Khas Arya, Madhesi, Tharu, and Muslim communities as mentioned in Schedule-1 on the basis of population. (6) While preparing the closed list of candidates, the party must ensure representation of backward regions and persons with disabilities. (7) While preparing the closed list of candidates, the party must prepare it in the prescribed format in such a way that candidates included under each inclusive basis under Sub-section (5) are identifiable separately. (8) The party must submit the closed list of candidates prepared under this Section to the Commission within the time specified under Sub-section (3) of Section 7.

While nominating a candidate in this manner, the party must nominate another candidate on the same inclusive basis on which the deceased candidate was nominated. 29. Opportunity to claim and object to the closed list of candidates: (1) The Commission shall examine and publish the closed list of candidates received under Section 28.

(2) While publishing the closed list of candidates under Sub-section (1), the Commission must also publish a notice stating that a claim or objection may be filed within seven days regarding the eligibility of any candidate whose name is included in such list not being in accordance with the Constitution or this Act.

(3) The Commission may publish and broadcast the closed list published under Sub-section (1) through media as required.

(4) Any voter may file a petition with the Commission within the time mentioned in the notice under Sub-section (3) of Section 7, stating that any candidate whose name is included in the closed list published

under Sub-section (1) does not possess the eligibility under the Constitution or this Act, along with evidence.

(5) If a petition of claim or objection is received under Sub-section (4), the Commission shall make necessary inquiries in relation thereto, and if it appears from the inquiry that the person whose name is included in the closed list does not possess the eligibility under the Constitution or this Act, the Commission shall mention the same and remove the name of such candidate from such list.

(6) After the proceedings under Sub-section (5) regarding the claim or objection filed under that Sub-section are completed, and if no claim or objection is filed, after the deadline for filing claims or objections has expired, the Commission shall publish the final closed list of candidates.

(7) The Commission shall certify the closed list published under Sub-section (6) and send it to the relevant party. 30. Validity period of closed list of candidates: (1) The closed list published under Sub-section (6) of Section 29 shall remain valid for the term of the House of Representatives. Provided that, after the formation of the House of Representatives, if the nominating party sends a notice to remove the name of a candidate, the Commission may remove the name of such candidate from the closed list.

(2) If a seat of a member elected under the proportional electoral system falls vacant due to death, resignation, defection, or any other reason, another member shall be elected as prescribed on the recommendation of the relevant party.

While making a recommendation in this manner, the party must recommend the name of another candidate from the closed list on the same inclusive basis on which the candidate whose seat fell vacant was nominated.

(3) A person whose name is included in the closed list of candidates for the proportional electoral system of the House of Representatives shall not be a candidate in an election for the National Assembly, Provincial Assembly, or Local Level, except in the case of removal of name under the proviso to Sub-section (1). Explanation: For the purpose of this Sub-section, "National Assembly" means the National Assembly constituted pursuant to Article 86 of the Constitution, "Provincial Assembly" means the Provincial Assembly constituted pursuant to Article 176 of the Constitution, and "Local Level" means a Rural Municipality, Municipality, and District Assembly. 31. Election symbol: (1) The Commission shall determine the election symbols to be distributed to parties and candidates for the election.

(2) The election symbol determined under Sub-section (1) shall be provided to parties and candidates as prescribed.

(3) The election symbol provided under Sub-section (2) shall not be used by anyone other than the candidates of such party or the party itself.

(4) If a candidate, after being provided with an election symbol by the Commission, leaves his/her party or joins another party, the election symbol provided to him/her shall not change. If such candidate is elected, and the relevant party files a complaint with evidence to the Commission, his/her membership shall be terminated.

(5) While providing election symbols to candidates for the First-Past-The-Post electoral system under this Section, the candidate of a party shall be provided with the election symbol determined for such party under Sub-section (1).

If the Commission believes that a mistake has been made or a difference has occurred while distributing the

election symbols in this manner, the Commission may change such symbol.

(6) For an independent candidate for the First-Past-The-Post electoral system, the Election Officer shall provide an election symbol from the group of election symbols determined by the Commission, in accordance with the prescribed method.

(7) While including the election symbols provided under Sub-sections (5) and (6) in the ballot paper, they shall be included in the following order:-

(a) The election symbol of the candidate of a party that was represented in the House of Representatives immediately before the election, based on the number of votes obtained by such party in the proportional electoral system in the election for that House of Representatives,

(b) In the case of a party not represented in the House of Representatives under clause (a), the election symbol of the candidate of such party, based on the order of registration with the Commission for electoral purposes,

(c) The election symbol of an independent candidate, based on the alphabetical order of the candidate's name.

(8) Notwithstanding anything contained in Sub-section (7), in the case of the first election after the commencement of this Act, while including the election symbols in the ballot paper, they shall be included in the following order:-

(a) The election symbol of the candidate of a party that was represented in the Legislature-Parliament, based on the number of votes obtained by such party in the proportional electoral system in the Constituent Assembly Member Election, 2070,

(b) In the case of a party not represented in the Legislature-Parliament, the election symbol of the candidate of such party, based on the order of registration with the Commission for electoral purposes,

(c) The election symbol of an independent candidate, based on the alphabetical order of the candidate's name.

(9) Notwithstanding anything elsewhere contained in this Section, while distributing election symbols for the proportional electoral system, the Commission shall distribute the election symbol determined for the relevant party, and while including such election symbol in the ballot paper, it shall be included in the order of clauses (a) and (b) of Sub-section (7) or clauses (a) and (b) of Sub-section (8).

(10) In case two or more parties represented in the House of Representatives or the Legislature-Parliament are unified or merged, for the purpose of clause (a) of Sub-section (7) or clause (a) of Sub-section (8), the total number of votes obtained by such parties prior to such unification or merger shall be deemed to be the number of votes obtained by the currently existing party. 32.

Death of candidate: (1) If, before the publication of the final list of candidates under Section 26 or after such publication, a candidate nominated by a party dies, and written notice thereof is received from an election representative, the relevant party, or any other person, and the Election Officer is satisfied of the fact, the Election Officer shall immediately suspend other programs related to such election and inform the Commission accordingly. Provided that if an independent candidate under the First-Past-The-Post electoral system or any candidate whose name is included in the closed list of candidates for the proportional electoral system dies, the election program shall not be suspended. (2) The Election Officer shall post the notice of

suspension of the program under Sub-section (1) at his/her office for the information of other candidates as well. (3) Upon receipt of the information under Sub-section (1), the Commission shall, if the death occurred before the publication of the final list of candidates, reset the program relating to nomination of candidates in such a way that it does not affect the voting program of such election, and if the death occurred after the publication of the final list of candidates, the Commission shall reset the date of voting and other programs under this Chapter and send them to the Election Officer. (4) Notwithstanding anything contained in Sub-section (3), if the election program is suspended due to the death of a candidate and the period required to complete the work as specified in the election program under Sub-section (2) of Section 7 is more than fifteen days, another program need not be published again, and the election program shall be determined in such a way that the work relating to the nomination of candidates is completed without hindering the voting work within the timeframe of the same program. (5) If the election program is suspended under Sub-section (1), a candidate who has already submitted a nomination paper need not file a nomination paper again, and only the party whose candidate died may nominate a candidate again. 33. Identity card of candidate: The Election Officer shall provide an identity card as prescribed by the Commission to a candidate under the First-Past-The-Post electoral system who remains in the final list under this Chapter. Chapter-6 Polling Station, Ballot Paper, and Ballot Box 34.

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